

Court No. - 37

Case :- WRIT - C No. - 5021 of 2020

Petitioner :- Sanjay @ Sanjeev Sharma

Respondent :- Executive Engineer Electricity Distribution And
2 Others

Counsel for Petitioner :- Chandra Shekhar Mishra

Counsel for Respondent :- Suman Kumar Yadav

Hon'ble Abhinava Upadhya,J.

Hon'ble Shamim Ahmed,J.

Learned counsel for the petitioner submits that he may be permitted to implead State of U.P. through its appropriate authority as respondent in the writ petition and also be permitted to correct the description of respondent no. 2 in due course.

Put up this case on Monday i.e. 17.2.2020 as fresh.

When the case is next listed, the name of Sri Chandan Agarwal, be shown as counsel for one of the respondent.

Order Date :- 11.2.2020

Ishan

(Shamim Ahmed,J.) (Abhinava Upadhya J.)

Court No. - 37

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Petitioner :- Sanjay @ Sanjeev Sharma

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Counsel for Petitioner :- Chandra Shekhar Mishra

Counsel for Respondent :- Suman Kumar Yadav, Chandan
Agarwal

Hon'ble Abhinava Upadhya, J.

Hon'ble Shamim Ahmed, J.

Learned counsel for the petitioner submitted that he may be permitted to implead State of U.P. through Principal Secretary Energy U.P. at Lucknow and Tehsildar, Tehsil Sadar, District Saharanpur as respondent nos. 4 and 5 respectively.

He is permitted to do so, during the course of the day.

As prayed, put up tomorrow i.e. 18.2.2020 as fresh.

Order Date :- 17.2.2020

Ishan

(Shamim Ahmed, J.) (Abhinava Upadhya J.)

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Against the allegation of electricity theft the petitioner has been saddled with the liability of more than Rs. 14 lacs. However, upon representation the said liability has been reduced by the Executive Engineer to Rs. 2 lacs and odd. The petitioner accepts his liability and is ready to pay the amount provided this Court fixes some installments.

In such matters for recovery of electricity dues installments cannot be fixed by this Court. However, in the U.P. Electricity Supply Code, 2005 itself there is a provision under Clause 6.14 wherein the petitioner can make an application before the Executive Engineer, who will consider the claim of the petitioner for payment of installments under the aforesaid provision.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 18.2.2020

Sunil Kr. Gupta

(Shamim Ahmed, J.) (Abhinava Upadhyay, J.)